

		protection claimed. Alternatively, Plaintiff may serve a statement within 20 days explaining that no document is being withheld based on privilege. For clarity, Plaintiff's non-privilege objections are OVERRULED. Re sanctions: Defendant seeks monetary sanctions of \$17,850.00, consisting of 17 hours at an hourly rate of \$1,050.00. (Grant Cofer Decl., ¶ 8.) The request appears excessive in light of the issues raised. The court finds the just and reasonable amount of fees to award here is \$2,100.00. (Code Civ. Proc., §§ 2030.300, 2031.310.) In sum: Consistent with this ruling, Plaintiff SHALL within 20 days: (A) serve a further response to Defendant's Form Interrogatory (Set One), No. 52; (B) serve a privilege log/statement concerning Defendant's RFP (Set One), No. 33; and (C) pay Defendant Staffpay a total of \$1,200.00 in monetary sanctions. Defendant Staffpay to give notice.
11	Keller vs. Etheridge	<u>Demurrer (re First Amended Complaint)</u> The court OVERRULES the general demurrer filed by Defendants KEVIN M. ETHERIDGE (individually) and KEVIN M. ETHERIDGE and CARALI S. ETHERIDGE, Trustees of the ETHERIDGE LIVING TRUST DATED September 1, 2020 to the third cause of action (nuisance) in the First Amended Complaint (FAC) filed by Plaintiffs ERIC KELLER and TRACY KELLER. Defendants argue that Plaintiffs have not cured the defects identified in the court's prior ruling on Defendants' motion for judgment on the pleadings (MJOP) and instead, Plaintiffs continue to plead a time-barred permanent nuisance claim.